

Master Services Agreement — Meridian Media Agency (Redacted)

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Prepared by / owner	Priya Raman
Date	1 July 2024
Classification	Strictly Confidential — Project Atlas
Customer	Meridian Media Agency
Counterparty status	Largest advertising agency account

MASTER SERVICES AGREEMENT (this “Agreement”) dated 1 July 2024 between **VistaPort Media Inc.** (“VistaPort” or the “Supplier”) and **Meridian Media Agency** (the “Agency” or “Customer”), on behalf of itself and its disclosed advertiser clients. Commercial terms shown as [REDACTED] are redacted for the data room in accordance with the clean-team protocol (DR-003).

Redacted execution copy. Defined terms have the meanings given in Schedule 1 (not reproduced). Governing law: State of New York.

1. Scope of services

VistaPort shall provide the Agency with access to the LumenX Ad Exchange, owned-and-operated inventory, audience and measurement products, and related campaign-management services (the “Services”), subject to the terms of each Insertion Order.

2. Fees and minimum commitment

Annual minimum commitment	[REDACTED] (redacted)
Platform / take-rate	[REDACTED]% of media (redacted)
Rebate / volume tier	[REDACTED] (redacted)
Payment terms	Net 45 days from invoice

The Agency commits to an annual minimum media spend of [REDACTED] across the Term, with tiered rebates of [REDACTED] as set out in Schedule 2 (redacted).

3. Term and renewal

Initial term of three (3) years from the Effective Date, renewing for successive one-year periods unless either party gives ninety (90) days’ written notice. Current contract end date for diligence purposes: 30 June 2027.

4. Data Protection, Security & User Trust

4.1 Safeguarding warranties. VistaPort warrants that it maintains a documented information-security programme aligned to recognised industry standards and that it implements appropriate technical and organisational measures to safeguard end-user personal data and the integrity of the audience data used to deliver the Services, including access controls, encryption of data at rest and in transit, logging and monitoring, and a documented incident-response capability.

4.2 Notification of Security Incidents and user-trust events. VistaPort shall notify the Customer **without undue delay**, and in any event in accordance with Section 4.5, on becoming aware of (a) any **Security Incident** affecting the Customer’s campaigns, end-user personal data processed in connection with the Services, or VistaPort systems used to deliver the Services; or (b) any other **material event affecting user trust or the integrity of audience data**, including any unauthorised access to, or compromise of, the identity or authentication systems

underpinning addressable audiences. “Security Incident” means any actual or reasonably suspected unauthorised access to, acquisition of, disclosure of, loss of, or interference with end-user personal data or audience data.

4.3 Service credits. Where a Security Incident or material user-trust event materially affects the Services or the addressable audiences delivered to the Customer, the Customer shall be entitled to service credits calculated in accordance with Schedule 3 (■■■■■■■■■■% of affected media value, redacted), without prejudice to any other remedy.

4.4 Termination for cause. The Customer may terminate this Agreement, or any affected Insertion Order, with immediate effect on written notice if a Security Incident or material event affecting user trust or the integrity of audience data occurs and is not remediated to the Customer’s reasonable satisfaction within thirty (30) days of notification, or where VistaPort fails to provide notification as required by Section 4.2.

4.5 Notification timing and content. Notification under Section 4.2 shall be made without undue delay and in any event within seventy-two (72) hours of VistaPort becoming aware of the relevant event, and shall include a description of the event, the data and audiences affected (to the extent known), and the remediation steps taken or planned.

4.6 Audit rights. Not more than once per calendar year (or more frequently following a Security Incident), the Customer may, on reasonable notice, audit VistaPort’s compliance with this Section 4, including review of relevant policies, certifications and incident records, subject to confidentiality and to VistaPort’s reasonable security requirements.

Sections 4.2, 4.4 and 4.5 operate together: a qualifying event triggers a 72-hour notification duty, service-credit exposure, and a customer termination right if the matter is not remediated. The credential-hygiene programme referred to internally as the Trust Reset is an operational initiative; whether any reportable event has occurred under Section 4.2 is a matter for Legal.

5. Confidentiality

Each party shall keep confidential the other’s confidential information and the terms of this Agreement, subject to permitted disclosures to advisers and as required by law.

6. Liability

Each party’s aggregate liability is limited to ■■■■■■■■■■■■■■■■ (redacted), save that the cap does not apply to breaches of Section 4 (Data Protection, Security & User Trust), indemnified claims, or wilful misconduct.

7. General

- Assignment requires consent, not to be unreasonably withheld; change of control of VistaPort requires notice to the Customer.
- Entire agreement; amendments in writing signed by both parties.
- Notices to the parties’ nominated representatives in Schedule 4 (redacted).

Execution copies held by the Office of the General Counsel. Redactions applied by Priya Raman, General Counsel for data-room purposes.